

CONTRACT No.KT-200125

Date 20 January 2025

**OISTEBIO GmbH**, Cra 9,32 Girardot, Colombia, registration number CHE-234.625.162, (legal domicile Oberneuhofstrasse 5, 6340 Baar, Switzerland), email trade@oistebio.ch, hereinafter referred to as “the Buyer”, on one side, and

**KAL TIRE RECYCLING CHILE SPA**, Calle 2 (Proyectada) N° 95, Barrio industrial La Negra, Antofagasta 1240000, Chile, email [EMAIL TO BE PROVIDED], ISCC registration number US201-138762025, hereinafter referred to as “the Seller”

## OBJECT OF THE CONTRACT

- 1. The Seller agrees to sell, and the Buyer to accept and pay for, ELT/NFU (End-of-Life Tyres), made of rubber, HS 40122000 (hereinafter, “the Goods”).

## PRICE, QUANTITY OF GOODS AND PAYMENT

- 1. The price of the Goods shall be agreed in writing for each purchase and is understood under DAP (DELIVERED).
- 2. Payment terms: 100% of all monthly deliveries at end of month. The Seller reserves the right not to initiate subsequent loadings of the Goods in case of delay.
- 3. The Seller has the option to modify each order by 10% at its discretion.
- 4. Annex 1 shall be used to agree on the price, quantity and delivery time.
- 5. Payment must be made to the following bank details:  
KAL TIRE RECYCLING CHILE SPA - [BANK DETAILS TO BE PROVIDED]

## DELIVERY CONDITIONS

- 1. The shipment of the Goods to the excise warehouse shall be carried out by the Seller.
- 2. The Goods shall be shipped under DAP (DELIVERED).
- 3. The Seller shall arrange the transport of the Goods by its own means and transport companies.

## OWNERSHIP AND RISK

- 1. Ownership of the Goods shall pass from the Seller to the Buyer at the moment the Seller receives full payment for the Goods.
- 2. All risk, including accidental loss or damage, shall pass from the Seller to the Buyer in accordance with INCOTERMS 2020 and its subsequent amendments.

## QUALITY AND QUANTITY OF THE GOODS

- 1. The quantity of the goods shall be determined by means of eRSV rev. 2025.1.1, completed by the shipping terminal. The quantity of the product must be reconfirmed by the weights at the shipping terminal.
- 2. The quality of the goods must comply with the established standards and specifications and be confirmed by the certificate of quality of the goods.
- 3. The supplied goods must be sustainable, supplied in accordance with the ISCC scheme and in compliance with the requirements derived from Directive 2009/28/EC of the European Union.

4. The Supplied Goods must be accompanied by the following documents (originals):

- Invoice;
- eRSV;
- PoS (Sustainability Certificate, copy);

## **FORCE MAJEURE**

6.1 Neither party shall be liable for partial or total non-fulfilment of its respective obligations under this Contract (except for non-payment of any sum due under this Contract) if such non-fulfilment is caused by force majeure circumstances, i.e. extraordinary and unforeseeable events, beyond the reasonable control of the parties, such as fire, flood, earthquake, war, mobilization, embargo, strike, riots, decisions of public authorities, etc.

6.2 The party to which it is impossible to comply with its obligations under the Contract shall immediately inform the other party in writing of the beginning, the foreseeable end, and, if possible, the cessation of the force majeure circumstances. Failure to notify or untimely notification deprives the affected party of the right to invoke any such circumstance as grounds for releasing it from liability for non-fulfilment of its obligations.

## **ARBITRATION**

- 1. If differences arise and the parties are unable to resolve them through negotiations, the differences or disputes shall be resolved in the competent court of the country of the claimant.
- 2. The parties shall do everything possible to resolve any difference or dispute arising from the execution of this Contract or related to it through negotiations. In all matters not regulated by this Contract, the parties shall be governed by the applicable law.

## **OTHER TERMS AND CONDITIONS**

- 1. The Contract shall enter into force on the date of its signing by both parties. The duration of the Contract is unlimited. The Contract may be terminated by mutual agreement of the parties.
- 2. This Contract is signed between the Seller and the Buyer, and neither party may transfer its rights and/or obligations under it to a third party without the prior written consent of the other party.
- 3. In case of breach of the agreement by one of the parties, the other party shall have the right to suspend or unilaterally terminate the current agreement.

Girardot, 20 January 2025

**KAL TIRE RECYCLING CHILE SPA OISTEBIO GMBH**

**[SIGNATORY NAME] PAOLO UGHETTI**

**[EMAIL TO BE PROVIDED] PAOLO@OISTEBIO.CH**

## **ANNEX 1**

Pursuant to contract nr KT-200125, the Seller, registration number ISCC US201-138762025, shall sell to the Buyer, OISTEBIO GMBH., the Goods under the following conditions:

Price per tonne: [PRICE TO BE AGREED] USD

Quantity: 825 mt monthly (+/- 20%)

Delivery time: February – August 2025